F.No. I/261/2023-O/o CC-CUS-ZONE-III -MUMBAI

भारतसरकार/Government of India
वित्तमंत्रालय /Ministry of Finance
कार्यालय/Office of
मुख्य सीमाशुल्क आयुक्त
THE CHIEF COMMISSIONER OF CUSTOMS
मुंबईअंचल-III /MUMBAI ZONE III
छत्रपति शिवाजी महाराज अंतर्राष्ट्रीय हवाई अड्डा,
मुंबई-400099
CSM International Airport, Mumbai-400099

सत्यमेव जयते

भारत सरकार

भारतीय सीमाशुल्क

Minutes of the Customs Clearance Facilitation Committee (CCFC) Meeting held on 10.09.2024

Meeting of the Customs Clearance Facilitation Committee (CCFC) chaired by Smt. Prachi Saroop, Chief Commissioner of Customs, Mumbai Zone-III was held on 10.09.2024 at 11.30 A.M. in the Conference room, Air Cargo Complex, Sahar, Mumbai.

2. Following representatives of the Partner Government Agencies (PGAs) and that of the other stakeholders were present in the meeting:

Sr. No.	Name of the representative (Shri/Smt./Ms.)	Name of the Organization
1	Dushyant Mulani	Brihanmumbai Customs Broker Association (BCBA)
2	Sanjeev Harale	BCBA
3	Ketan Desai	BCBA
4	Jagrati K. Reddy	Department of Posts
5	Prashant C. Mohite	Department of Posts
6	P.N. Wasnik	Textiles Committee
7	Harish Zade	LH Cargo
8	Pradeep Sonar	MIAL
9	Rafiq Shaikh	MIAL
10	Mahesh Bowlay	MIAL
11	Gaurav Sabnis	MIAL
12	Vikas Shinde	CDSCO
13	V. Sooraj	CDSCO
14	Robin Fernades	British Airways
15	Mark S. Fernandes	Shipping & Logistics Committee
16	Hiren Joshi	Air India Airport Services Ltd.
17	Kamlesh C. Sawant	Air India Airport Services Ltd.

The Customs department was represented by the following officers:

Sr.	Name (Shri/Smt/Ms.)	Designation	Commissionerate

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No.			
1	Hardeep Batra	Commissioner	Export
2	G. Shiril Saroj	Commissioner	Import
3	Nilank Kumar	Commissioner	General
4	Harish Dharnia	Commissioner	APSC
5	Sarika Shah	Addl. Commissioner	CCO, MZ-III
6	Mohan Singh Dorai	Addl. Commissioner	Import
7	Satish Kumar	Addl. Commissioner	General
8	V. I. Singh	Addl. Commissioner	Import
9	Sunil Kumar Gautam	Joint Commissioner	APSC
10	Hemant Kumar	Joint Commissioner	Import
11	Deepak Dhamane	Deputy Commissioner	CCO, MZ-III
12	Prateeti Goyal	Deputy Commissioner	Import
13	Shashikant Mane	Asstt. Commissioner	Export
14	Jagdish Chandra Barjo	Asstt. Commissioner	Import

3. The Additional Commissioner of Customs, Chief Commissioner's Office, Mumbai Zone-III welcomed the participants.

4. During the course of Power Point Presentation, the following agenda pointsfor the CCFC meeting were discussed.

4.1 OldAgenda Point – 1: Improvement in Infrastructure and Service Levels required at MIAL at ACC.

BCBA submitted that because of infrastructure constraints time taken for deliveryhas now increased to 6-8 hours due to congestion of vehicle inside ACC.MIALsubmitted that they have undertaken work on import cold storage, installation of temporary shed lights, heavy dock terminal construction, revamping of CHA meeting area along with the development of customs offices and firefighting system.MIAL representative informed that a master plan is being worked out regarding revamping of the existing Air Cargo Complex. The Chair directed Commissioner (G) to prepare a schedule of meetings with MIAL and BCBA along with the Commissioner (I) and Commissioner (X) and share with CCO.

Action: Commissioner (G)/MIAL/BCBA

Old Agenda Point - 2: Shortage of Customs Staff causing Pendency of EMS Articles on day to day basis, Previously 5 Superintendents were available for Custom Clearance, but presently only 4 are available, no reliever is provided against leave of any one of the Superintendents which leads in delay of clearance of articles received in CED Section.

Commissioner (APSC) stated that sufficient number of officers have been posted at APSO and the clearance of EMS articles is going smoothly.

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(Point Closed)

Old Agenda Point – 3: Unilateral increase in THC (Terminal Handling Charges) and Demurrage charges by MIAL

The Chair suggested that the charges should be levied in accordance with AERA provisions and with the permission of Civil Aviation Ministry. MIAL submitted that any further increase in the terminal handling charges and demurrage charges will be done in accordance with AERA provisions and with the permission of Civil Aviation Ministry.

(Point Closed)

Old Agenda Point – 4: Faceless Issues

(d) Recall and Re-assessment of BoE's in case of incorrect assessment: There are many instances wherein during assessment at FAG, the FAG officer denies the benefit of exemption notification or enhancement of assessable value without raising query.

(e) Speaking order not being issued: On various occasion, due to change in assessment carried out by FAG officers, speaking order is seldom issued. For queries like valuation, classification, denial of examination notification etc. speaking order should be issued on immediate basis.

(f) BoE being kept aside on low priority: Provision to keep aside the BoE should be withdrawn on urgent basis, as it is totally non-transparent against the basic principle of transparency and predictability.

These points do not pertain to INBOM4. However, the chair requested BCBA to submit a NAC wise all India level data along with a detailed representation regarding the issues faced by the trade so that it can be taken up with authorities in other FAGs. Commissioner, Import was requested to submit a draft letter with regard to all the issues faced by trade that pertains to other NACs after receipt of the same from BCBA

Action: BCBA/Commissioner (Import)

Old Agenda Point – 5: Delay in clearance with PGA's

Plant Quarantine (PQ): For obtaining NOC from Plant Quarantine, trade faces considerable difficulty, because online process is not working due to the up gradation of their software for a long time.

Commissioner (Import) informed that PQ system for issuing NOC's is online but the system isn't integrated with ICEGATE, which leads to delay. PQ representative submitted that the integration of PQ system with ICEGATE is currently in progress and it will be done shortly. The Chair requested Commissioner (Import) to write a letter to PQ authorities in this regard.

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Action: Commissioner (Import)

4.2 New Agenda Point – 1: Contact details for the various NACs in Faceless and the issuance of a Public Notice to help the trade address any related issues.

The chair directed Commissioner Import to issue a public notice specifying official email ids of all NACs.

Action: Commissioner (Import)

New Agenda Point – 2: Request a PN outlining the SOP for conducting Personal Hearing in Faceless, along with a time for issuing speaking orders.

Import Commissionerate submitted that Section 17 of Customs Act, 1962 already specifies the time frame required for issuance of speaking orders. Import Commissionerate further informed that they have already issued a Public Noticein this regard providing requisite directions to FAG officers at Air Cargo Complex, Mumbai. The chair directed BCBA to submit NAC wise detailed representation in this matter.

Action: BCBA

New Agenda Point – 3: An SOP or mechanism for addressing delays in assessment within the Faceless system.

BCBA submitted that this point does not pertain to INBOM4.

(Point closed)

New Agenda Point – 4: Frequent ICEGATE breakdowns are causing delays in clearance. Request a waiver of late filing charges to be given on the same day to avoid further delay in clearance, as these system related disruptions are beyond control of the trade.

BCBA requested that downtime of ICEGATE should be notified in accordance so the decision to waive late filing charges can be taken by the competent authority. The chair requested BCBA to submit a representation in this regard.

Action: BCBA

New Agenda Point – 5: WCCB has been facing a staff shortage, which is affecting visits to the ACC for NOC issuance of Import and Export Shipments.

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The chair directed Commissioner, Import and Commissioner, Export to take up the matter with WCCB to post sufficient staff at Air Cargo Complex, Mumbai for smooth clearance of the goods.

Action: Commissioner (Import)/Commissioner (Export)

New Agenda Point – 6: BCBA submitted that time taken from entry inward till issuance of segregation report is also included by MIAL in the demurrage charge period.

The chair requested BCBA to submit all India level data along with practice followed at other Air Cargo Complex. Import Commissionerate was directed to submit a representation on the basis of inputs received from BCBA so that the matter can be taken up with higher authorities.

Action: BCBA/Commissioner (Import)

5. Meeting ended with a vote-of-thanks to the Chair and all attendees.

6. The next CCFC meeting is scheduled to be held on 10.12.2024.

6. This issues with the approval of the Chief Commissioner, Mumbai Customs Zone-III.

25/09/24

Deputy Commissioner
CCO, Mumbai Zone-III

Copy to:

1. The Under Secretary (Cus.IV), CBIC, North Block, New Delhi.
2. All Pr. Commissioner/Commissioner of Customs, Mumbai Zone-III.
3. All the Members of CCFC (Through e-mail).
4. The DC/EDI, ACC (With a request to upload the minutes on the zonal website)

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